TANEY, Ch. J., having been of counsel in this cause, did not sit in the same.

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*The Proprietors of the CHARLES RIVER BRIDGE, Plaintiffs in error, *v.* The Proprietors of the WARREN BRIDGE and others. [*420

Constitutional law.—Protection of corporate franchises.—Competing bridge charters.

In 1650, the legislature of Massachusetts granted to Harvard College, the liberty and power to dispose of a ferry, by lease or otherwise, from Charlestown to Boston, passing over Charles river; the right to set up a ferry between these places had been given by the governor, under the authority of the court of assistance, by an order dated November 9th, 1636, to a particular individual; and was afterwards leased successively to others, they having the privilege of taking tolls regulated in the grant; and when, in 1650, the franchise of this ferry was granted to the college, the rights of the lessees in the same had expired; under the grant, the college continued to hold the ferry, by its lessees, and receive the profits therefrom, until 1785, when the legislature of Massachusetts incorporated a company to build a bridge over Charles river, where the ferry stood, granting them tolls; the company to pay to Harvard College 200*l.* a year, during the charter, for forty years, which was afterwards extended to seventy years; after which the bridge was to become the property of the commonwealth. The bridge was built, under this charter, and the corporation received the tolls allowed by the law; always keeping the bridge in order, and performing all that was enjoined on them to do. In 1828, the legislature of Massachusetts incorporated another company, for the erection of another bridge, the Warren bridge, over Charles river, from Charlestown to Boston, allowing the company to take tolls; commencing in Charlestown, near where the Charles river bridge commenced, and terminating in Boston, about 800 feet from the termination of the Charles river bridge; the bridge was to become free after a few years, and had actually become free. Travellers, who formerly passed over the Charles river bridge, from Charlestown square, then passed over the Warren bridge; and thus the Charles River Bridge company were deprived of the tolls they would have otherwise received; the value of the franchise granted by the act of 1785, was thus entirely destroyed. The proprietors of the Charles river bridge filed a bill in the supreme judicial court of Massachusetts, against the proprietors of the Warren bridge, first, for an injunction to prevent the erection of the bridge, and afterwards for general relief; stating that the act of the legislature of Massachusetts authorizing the building of the Warren bridge, was an act impairing the obligations of a contract, and therefore, repugnant to the constitution of the United States; the supreme court of Massachusetts dismissed the bill of the complainants; and the case was brought by writ of error to the supreme court of the United States, under the provisions of the 25th section of the judiciary act of 1789. The judgment of the supreme judicial court of Massachusetts, dismissing the bill of the plaintiffs in error, was affirmed.

The court are fully sensible, that it is their duty, in exercising the high powers conferred on them by the constitution of the United States, to deal with these great and extensive interests (chartered property), with the utmost caution; guarding, *so far as they have power to do so, the rights of property, at the same time, carefully abstaining from any encroachment [*421 on the rights reserved to the states.

The plaintiffs in error insisted on two grounds, for the reversal of the judgment or decree of the supreme court of Massachusetts: 1. That by the grant of 1650, Harvard College was entitled, in perpetuity, to the right to keep a ferry between Charlestown and Boston; that the right was exclusive, and the legislature had no right to establish another ferry, on the same line of travel, because it would infringe the rights of the college and those of the plaintiffs, under the charter of 1785. 2. That the true construction of the acts of the legislature of Massachusetts, granting the privilege to build a bridge, necessarily imported, that the legislature would not authorize another bridge, and especially a free one, by the side of the Charles river bridge; so that the franchise which they held would be of no value; and that this grant of the franchise of the ferry to the college, and the grant of the right of pontage to the proprietors of the Charles river bridge, was a contract which was impaired by the law authorizing the erection of the Warren bridge. It is very clear, that in the form in which this case comes before us, being a writ of error to a state court, the plaintiffs, in claiming under either of these rights, must place